

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 28, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE, N.A. v. LOUIS E. PADILLA
Case No. CL25-05738**

Motion to Enforce Settlement

TENTATIVE RULING

The motion is denied.

Plaintiff has not filed a proof of service demonstrating that Defendant has been served with the motion papers in a manner authorized for the service of a summons at least 16 court days prior to the hearing.

**AMERICAN EXPRESS NATIONAL BANK vs. AUBREY LARGAESPADA; ET AL.
Case No. CL26-01992**

Motion to Quash Service of Summons

TENTATIVE RULING

The motion to quash the summons filed by Defendant Largaespada is denied.

The return of a registered process server creates a presumption, affecting the burden of production of evidence, of the facts stated in that return. (Evid. Code § 647.) The effect of this presumption is to assume the truth of the presumed fact unless and until